

SAMPLE CONSTRUCTION CONTRACT (PJ-01 CONTRACT A)

Between ABC Construction Corp (the Client) and the Contractor.

1. - SCOPE OF WORK, DELIVERABLES AND EXCLUSIONS

1.1 The Contractor shall perform the complete renovation of the commercial building located at the Site, including demolition, structural works, mechanical and electrical installation, and final finishing.

1.2 The deliverables are the renovated building, the as-built records and the operation and maintenance manuals.

1.3 Any work not expressly described in this scope is listed in the exclusions and requires a written change order signed by both parties.

2. - CONTRACT PRICE, PAYMENT TERMS AND INVOICING

2.1 The total contract price is 2,650,000.00 EUR (two million six hundred and fifty thousand euros), fixed and not subject to revision.

2.2 The Client shall pay monthly progress invoices within thirty (30) days of certification.

2.3 A retention of 5% shall be withheld from each payment and released upon issue of the Final Completion Certificate.

3. - TIME FOR COMPLETION, MILESTONES AND PROGRAMME

3.1 The Works shall commence on 01/06/2025 and shall achieve Practical Completion no later than 31/03/2026, in accordance with the approved programme.

3.2 The Contractor shall achieve the structural milestone within 120 days of commencement.

4. - TECHNICAL SPECIFICATIONS, STANDARDS AND DRAWINGS

4.1 All structural steel shall comply with EN 1090-2 execution class EXC3 and the approved drawings.

4.2 Concrete shall achieve a characteristic strength of C30/37 with a minimum reinforcement cover of 40 mm.

5. - QUALITY PLAN, INSPECTION AND TEST PLAN

5.1 The Contractor shall maintain a documented Quality Plan certified to ISO 9001 and shall grant the Client access to all inspection and test records.

5.2 Defective work identified during inspection shall be rectified at the Contractor's cost within fourteen (14) days of written notice.

6. - LIABILITY, INSURANCE, TERMINATION AND GOVERNING LAW

6.1 The Contractor's aggregate liability shall not exceed the total contract price, save for death, personal injury or fraud.

6.2 The Contractor shall maintain all-risks insurance for the full reinstatement value of the Works.

6.3 Either party may terminate for material breach not remedied within thirty (30) days of written notice.

6.4 This Contract is governed by Spanish law, and the parties submit to the exclusive jurisdiction of the courts of Madrid.